

any other nature, which are to be settled and held on the same trusts, and to devolve in the same manner as the chattels sold; but by sub-sect. (3), no sale or purchase of chattels under this section is to be made without an order of the Court.

Whether proceeds of heirlooms devolve as personalty.—A dignity or title of honour which descends to the heirs general or heirs of the body, is within the definition of land, and heirlooms settled so as to devolve with the dignity or title may be sold under this section.¹ We have already referred to the sections regulating the application or disposition of capital money arising under the Act (*e*), and it is to be observed that under sect. 22, sub-sect (5), capital money is “for all purposes of disposition, transmission, and devolution, to be considered as *land*,” and is to be held for, and go to, the same persons successively, in the same manner, and for and on the same * estates, interests, and [*567] trusts, as the *land* wherefrom the money arises would, if not disposed of, have been held and have gone under the settlement.” It has been doubted whether this sub-section has any application to money arising from the sale of personal chattels; and there seems no sound reason for making the money arising from the chattels devolved as land, while if it is re-invested in other chattels they are to devolve as personalty. The latter part of the sub-section points to money arising from *land* as being the subject matter to which it relates and it would be construing the sub-section in direct opposition to the spirit in which it is framed to hold, that, while its apparent object was to leave the estates and interests of the persons beneficially interested in land unaffected by the sale, when applied, by reference, to money arising from personal chattels it is to have the effect of altering the nature of the estates, and in most cases of changing an absolute estate in remainder into a mere tenancy in tail. To effectuate such a change the language of the Act should be clear and unambiguous, and it is conceived that the language

(*e*) See *ante*, p. 562.

¹ *Re Carnac's Will*, 33 W. R. 837; W. N. 1885, p. 142.